

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2Go CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: March 19, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER GRANTING BARAKAT + BOSSA, PLLC’S UNOPPOSED MOTION TO WITHDRAW AS
COUNSEL FOR RESPONDENT OAK WAY CARGO, LLC, AND GRANTING OAK WAY CARGO,
LLC’S MOTION TO STAY ALL DEADLINES**

On March 17, 2026, Respondent filed Oak Way Cargo, LLC’s Motion to Stay All Deadlines (“Motion to Stay”). In addition, on March 17, 2026, Respondent’s counsel filed Barakat + Bossa, PLLC’s Unopposed Motion to Withdraw as Counsel for Respondent Oak Way Cargo, LLC (“Motion to Withdraw”).

In the Motion to Stay, Respondent asks for an order staying all deadlines for 30 days because Respondent’s counsel, Barakat + Bossa, PLLC (the “Firm”) filed the concurrent Motion to Withdraw. Respondent states that the Motion to Stay is necessary to allow Respondent to obtain new counsel. Respondent also represents that it conferred with Complainant, who agrees to a seven-day stay, but not a 30-day stay. (*See generally* Motion to Stay). In addition, Complainant consents to the Motion to Withdraw.

In the Motion to Withdraw, the Firm asserts that “irreconcilable differences have arisen” between Respondent and the Firm, that continued representation will result in an unreasonable financial burden on the Firm, and that Respondent has been warned that counsel will be withdrawing.

Commission Rule 23 provides that:

If an attorney wishes to withdraw from representing a party, and written consent is not obtained, or if the party is not otherwise represented, the withdrawing attorney shall file an appropriate motion seeking permission to withdraw and provide appropriate reasons for making the motion. Such motion will be decided in consideration of the factors and standards set forth in Rule 1.16 of the American Bar Association's [“ABA”] Model Rules of Professional Conduct [“MRPC”] and by the courts.

(46 C.F.R. § 502.23(e)). In turn, Rules 1.16(b) and (c) of the ABA's MRPC provide:

(b) Except as stated in paragraph (c), a lawyer may withdraw from representing a client if:

- (1) withdrawal can be accomplished without material adverse effect on the interests of the client;
- (2) the client persists in a course of action involving the lawyer's services that the lawyer reasonably believes is criminal or fraudulent;
- (3) the client has used the lawyer's services to perpetrate a crime or fraud;
- (4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement;
- (5) the client fails substantially to fulfill an obligation to the lawyer regarding the lawyer's services and has been given reasonable warning that the lawyer will withdraw unless the obligation is fulfilled;
- (6) the representation will result in an unreasonable financial burden on the lawyer or has been rendered unreasonably difficult by the client; or
- (7) other good cause for withdrawal exists.

(c) A lawyer must comply with applicable law requiring notice to or permission of a tribunal when terminating a representation. When ordered to do so by a tribunal, a lawyer shall continue representation notwithstanding good cause for terminating the representation.¹

Applying these factors to the present case, I accept the representation from the Firm that there has been a breakdown in the attorney/client relationship. I also accept the Firm's representation that it has become an unreasonable financial burden on the Firm to continue representing Respondent. Indeed, I note that the Firm filed a Notice of Claim of Attorney's Charging Lien on December 23, 2025, representing that Respondent owes costs and expenses to the Firm, and that the Firm claimed a lien over any money due to Respondent in this action.

I note, however, that one of the considerations to allowing an attorney to withdraw is whether "withdrawal can be accomplished without material adverse effect on the interests of the client." (MRPC Rule 1.16(b)(1)). Discovery is currently scheduled to end on March 23, 2026. (*See Order Granting Second Joint Motion to Extend Schedule Order Deadlines*). There is an Initial Decision deadline of July 29, 2026. (*Id.*). On February 11, 2026, I issued an order requiring Respondent to produce a corporate representative for a deposition. (*See Order Granting in Part and Denying in Part Complainant's Motion to Compel Deposition of Respondent's Corporate Representative, and Denying Without Prejudice Respondent's Cross-Motion for Protective Order (the "February 11 Order")*). Also, on March 10, 2026, I issued an order

¹ [Rule 1.16: Declining or Terminating Representation](#) (last visited March 18, 2026).

requiring Respondent to answer interrogatories and respond to document requests. (*See* Order Granting In Part and Denying In Part Complainant's Motion to Overrule Respondent's Objections and Compel Better Answers (the "March 10 Order")).

To protect the Respondent, I will grant the Motion to Stay, and stay the matter for 30 days from the filing of the Motion to Stay, until April 16, 2026, in order for Respondent to find new counsel, and for the new counsel to become familiar with this matter. Within a week of the stay ending, Complainant's counsel and Respondent's new counsel (or Respondent itself, if not represented), shall meet-and-confer regarding remaining deadlines, and file a corresponding motion to extend case deadlines. In the motion to extend deadlines, the parties will include proposed dates for when Respondent will produce additional documents/interrogatory answers and produce a corporate representative for a deposition, dates for expert discovery (if any), and a briefing schedule. If the parties must go past the initial decision deadline of July 29, 2026, in order to have a reasonable period of time to accomplish the remaining tasks, they may propose a reasonable schedule that goes past the July 29, 2026, deadline.

I will also grant the Motion to Withdraw by the Firm, but I will impose the following condition in order to ensure that Respondent appreciates its circumstances. Within seven days of the entry of this order, the Firm will file a certification with the Office of the Secretary (and provide a copy to the Office of Administrative Law Judges) indicating that the Firm has informed Respondent that regardless of whether Respondent retains new counsel, Respondent is obligated to comply with all orders and deadlines, including the requirements of the February 11 Order, the March 10 Order, the order to meet-and-confer and to file a motion to extend deadlines as set forth herein, and any forthcoming scheduling order, and that failure to comply with discovery requirements may result in a default judgment.

Accordingly, it is **HEREBY ORDERED** that the Motion to Stay is **GRANTED**. It is

FURTHER ORDERED that the deadlines set forth in the Order Granting Second Joint Motion to Extend Schedule Order Deadlines are **STAYED** until **April 16, 2026**, and will be modified. It is

FURTHER ORDERED that the Motion to Withdraw is **GRANTED**. It is

FURTHER ORDERED that the Firm will file a certification with the Office of the Secretary (with a copy to the Office of Administrative Law Judges) no later than **March 26, 2026**, indicating that the Firm has informed Respondent that regardless of whether Respondent retains new counsel, Respondent is obligated to comply with all orders and deadlines, including the requirements of the February 11 Order, the March 10 Order, the order to meet-and-confer and to file a motion to extend deadlines as set forth herein, and any forthcoming scheduling order, and that failure to comply with discovery requirements may result in a default judgment. It is

FURTHER ORDERED that no later than **April 23, 2026**, Complainant and Respondent (regardless of whether it has retained a new counsel) will meet-and-confer about remaining case deadlines and will file a corresponding motion to extend case deadlines, which will include proposed dates for when Respondent will produce additional documents/interrogatory answers and produce a corporate representative for a deposition, dates for expert discovery (if any), and a briefing schedule.

SO ORDERED

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge